

SUPREME COURT OF THE STATE OF NEW YORK **SUMMONS**
COUNTY OF QUEENS

-----X
MIGUEL CORDOVA PORTILLA,
Plaintiff,
- against -
Plaintiff designates
QUEENS COUNTY as the
place of trial.

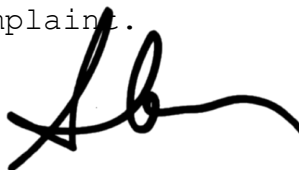
POLICE OFFICER JESSE MCKAY, Tax
Registry number 953087, POLICE OFFICER
BRYAN LEIBOLD, Tax Registry number
955051, CITY OF NEW YORK, "JOHN DOE"
1-10, names unknown but believed to be
New York City Police officers involved
in arrest and assault of plaintiff,
Defendants.
The basis of venue is:
Location of occurrence
CPLR 504(3)
Plaintiff residence:
57-22 162nd Street
Flushing, NY

-----X

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Mineola, New York
June 6 2024



Steve J Marchelos
MARCHELOS LAW PC
Attorneys for Plaintiff(s)
87 Mineola Boulevard
Mineola, New York 11501
(516) 248-0202

TO: POLICE OFFICER JESSE MCKAY c/o NYC Police Dept. 115th Precinct,
92-15 Northern Blvd, Jackson Heights, NY 11372

POLICE OFFICER BRYAN LEIBOLD c/o NYC Police Dept. 115th Precinct,
92-15 Northern Blvd, Jackson Heights, NY 11372

CITY OF NEW YORK, 100 Church Street, New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X

MIGUEL CORDOVA PORTILLA,
Plaintiff,
- against -

VERIFIED COMPLAINT

POLICE OFFICER JESSE MCKAY, Tax
Registry number 953087, POLICE OFFICER
BRYAN LEIBOLD, Tax Registry number
955051, CITY OF NEW YORK, "JOHN DOE"
1-10, names unknown but believed to be
New York City Police officers involved
in arrest and assault of plaintiff,
Defendants.

Index No:

-----X

MIGUEL CORDOVA PORTILLA, by his attorney, MARCHELOS LAW
P.C., alleges the following, upon information and belief, as his
Complaint:

NATURE OF THE ACTION

1. This civil rights action arises from the defendant
Police Officers' physical assault, battery, use of excessive
force and false arrest and imprisonment upon plaintiff on May
16, 2023 through May 17, 2023 at 3146 99th Street, Fl 1, East
Elmhurst, NY 11369;

2. Plaintiff seeks declaratory relief pursuant to 28
U.S.C. § 2201 and CPLR 3001, compensatory and punitive damages
for violation of plaintiff's civil rights pursuant to 42 U.S.C.
§§ 1981, 1983, 1985 and 1986 and an award of costs,
disbursements, and attorneys' fees under 42 U.S.C. §1988.

Plaintiff also seeks compensatory and punitive damages under common law State tort claims and 42, U.S.C. §§1983, et, seq.;

VENUE

3. Venue for this action is placed in the County of Queens because that is the county of occurrence of the acts alleged herein pursuant to CPLR 504(3);

NOTICE OF CLAIM

4. That on August 14 2023, plaintiff caused a Notice of Claim to be served upon defendant, CITY OF NEW YORK;

5. The Notice of Claim was delivered to the person designated by law as a person to whom such claims may be presented and served, and/or in the manner in which such claims may be presented and served;

6. The Notice of Claim was in writing, sworn to by or on behalf of the plaintiff and contained the name and post office address of the plaintiff and plaintiff's attorney, the nature of the claim, the time when the place where and the manner by which the claim arose, and the damage and injuries claimed to have been sustained;

7. That on November 9, 2023, a hearing pursuant to General Municipal Law §50-h was held virtually;

8. That defendant, CITY OF NEW YORK, never requested a

physical exam;

9. That at least thirty days have elapsed since the service of the Notice of Claim and that Defendants CITY OF NEW YORK have either neglected, failed and/or refused to pay and/or adjust the claims within the statutory period of time;

10. This action has been started within one year and ninety days after the happening of the events upon which each claim is based;

PARTIES

11. Plaintiff was and continues to reside in the State of New York;

12. That at all times relevant, defendant, CITY OF NEW YORK, was a municipal corporation authorized under and pursuant to the laws of the State of New York.

13. That all times relevant, defendant, POLICE OFFICER JESSE MCKAY, tax registry number 953087, [hereinafter referred to as "MCKAY"], was employed by defendant, CITY OF NEW YORK and the New York City Police Department;

14. At all times relevant, defendant, MCKAY was a duly appointed and acting police officer of the CITY OF NEW YORK and the New York City Police Department;

15. At all times relevant, defendant, POLICE OFFICER BRYAN

LEIBOLD, tax registry number 955051 [hereinafter referred to as "LEIBOLD"], was employed by defendant, CITY OF NEW YORK and the New York City Police Department;

16. At all times relevant, defendant, LEIBOLD, was a duly appointed and acting police officer of the CITY OF NEW YORK and the New York City Police Department;

17. At all times relevant, defendants, "JOHN DOE" 1-10 [hereinafter referred to as the "John Doe officers"], were employed by the CITY OF NEW YORK and the New York City Police Department;

18. At all times relevant, the "John Doe Officers" were duly appointed and acting police officers of the CITY OF NEW YORK and the New York City Police Department;

19. At all times relevant, the individual defendants, were acting under the color of State Law;

20. At all times relevant, the individual defendants, were acting both in their individual and official capacity as employees of the CITY OF NEW YORK and the New York City Police Department;

21. Notwithstanding the unconstitutional and unlawful conduct, the actions of the defendants were taken in the course of their duties and were incidental to their otherwise lawful

functions as agents, servants and employees of the County of Suffolk and the Suffolk County Police Department;

FACTS UNDERLYING PLAINTIFF'S CLAIMS FOR RELIEF

22. That on or about May 16, 2023 at approximately 6:30 a.m., plaintiff was asleep in his bedroom located on the first floor of his residence, 31-46 99th Street, East Elmhurst, NY.

23. On this date, time, and location, while claimant was asleep in his bed, plaintiff was violently assaulted and physically battered by multiple employees of the NYPD (believed to be 6 or 7) all dressed in black;

24. That these police officers broke down plaintiff's bedroom door, while plaintiff was asleep and aimed laser guided firearms at his face;

25. That these police officers dragged plaintiff off his bed, threw him to the ground and beat him physically;

26. That these police officers repeatedly punched and stomped plaintiff who started bleeding profusely. Plaintiff was thereafter held down on the floor lying face down in a pool of his own blood;

27. Plaintiff was then handcuffed and arrested for 1 charge of resisting arrest;

28. The forced entry into plaintiff's bedroom and physical

assault, battery and excessive use of force was all undertaken by defendants without justification causing physical injuries to plaintiff;

29. Prior to these events, plaintiff was asleep in his home and had not done anything wrong;

30. Prior to these events, plaintiff was asleep in his bed and could not have resisted arrest;

31. That plaintiff was not charged or accused with any underlying crime that would've resulted in his arrest that he was accused of resisting;

32. That the defendant police officers handcuffed plaintiff and brought him to the 115th police precinct and then Queens Central Booking;

33. Plaintiff was forced to spent approximately 30 hours in custody against his will;

34. Plaintiff was eventually arraigned and released from police custody on May 17, 2023, at approximately 12:00 p.m.

35. On September 20, 2023, the single charge of resisting arrest levied against plaintiff was dismissed in the Criminal Court;

36. At no time did claimant do anything to justify the physical attack by the defendant police Officers.

37. That plaintiff did not commit, and was not charged with committing, any underlying crime or offense for which he could've resisted arrest from;

38. The it is believed the "resisting arrest" charge asserted against plaintiff was alleged as a pretext to justify the arrest, imprisonment, assault battery and use of excessive force by the police officers.

39. That plaintiff was never a treat to the officers, never resisted arrest and, in fact, feared for his life when they broke into his room, while he was asleep and aimed lasered firearms at his head, Therefore the actions taken by the police officers, inclusive of the arrest, excessive force and pretextual criminal charge was improper, contrary to law and unconstitutional.

40. That plaintiff was not in possession of any firearms, weapons, or other contraband to justify the violent and unconstitutional actions of the police officers.

41. At no time did plaintiff do anything to justify the physical attack by the defendants.

42. At no time did plaintiff do anything to justify the intrusion into plaintiff's home by the defendants.

43. At no time did plaintiff do anything to justify his

arrest by defendants.

44. That as a result of the foregoing, plaintiff was caused to sustain significant personal injuries including, but not limited to, a nasal fracture with persistent bleeding, a lacerated finger, and multiple scrapes, contusions and abrasions to his face, head, and legs all of which required medical attention.

45. Plaintiff has been caused to incur unnecessary medical expenses as a result of the incident.

46. Plaintiff was also caused to suffer a physical assault and battery with excessive force by multiple police officers that was unjustified, unwarranted, and excessive under the circumstances.

47. Plaintiff was also arrested without probable cause or justification for a period of approximately 30 hours.

48. These incidents and injuries have also caused Plaintiff to sustain fear, anxiety, emotional harm, and a loss of liberty as well as grave fear and intimidation for his safety and well-being by virtue of the intentional, deliberate, malicious, unexpected, and vicious acts of the officers including the uninhibited manner, suddenness, and ferocity in which they physically attacked plaintiff inside his home without

justification.

49. All the above has resulted in pain, suffering, anxiety and emotional harm, costs for medical care for his injuries and all other damages to which the plaintiff is entitled to by case law and statute.

**FIRST CAUSE OF ACTION CAUSE OF ACTION FOR
VIOLATION OF PLAINTIFF'S RIGHT TO BE FREE
FROM UNREASONABLE SEARCHES AND SEIZURES
UNDER THE FOURTH, FIFTH AND FOURTEENTH
AMENDMENTS TO THE UNITED STATES CONSTITUTION
PREDICATED UPON USE OF EXCESSIVE FORCE**

50. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

51. As a result of the aforescribed actions, including the use of excessive physical force and intentional infliction of emotional harm upon the plaintiff, the individual defendants, deprived plaintiff of the ***rights, privileges and immunities*** secured by the Constitution and laws of the United States and the Fourteenth Amendment;

52. As a result of the aforescribed actions, these individual defendants deprived plaintiff of the substantive and procedural due process ***right to be free from unreasonable seizures*** secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

53. As a result of the aforescribed actions, these individual defendants deprived plaintiff of his ***right to liberty*** without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

54. The amount and type of physical force used upon plaintiff by these defendants was unnecessary, improper, excessive, and not reasonably justified under any circumstances;

55. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

56. The aforescribed acts of these defendants were intentional, willful, malicious, and performed with reckless disregard for and deliberate indifference to plaintiff's rights and physical well-being;

57. The afore-described acts of defendants were performed under color of state law;

58. The aforementioned use of force and infliction of emotional harm caused immediate injury in the form of physical and emotional pain, suffering, shock, fright, humiliation, embarrassment, disgrace, and deprivation of plaintiff's constitutional rights;

59. As a result of the foregoing, plaintiff has suffered

damages;

**SECOND CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCHES AND SEIZURES UNDER
ARTICLE I OF THE NEW YORK STATE CONSTITUTION
PREDICATED UPON THE USE OF EXCESSIVE FORCE**

60. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

61. As a result of the aforescribed actions, including the use of excessive physical force, the defendants deprived plaintiff of the ***rights, privileges and immunities*** secured by Article I, Sections 1, 5, 8, 11 and 12 the New York State Constitution;

62. As a result of the aforescribed actions, including the use of excessive physical force upon the plaintiff, the defendants deprived plaintiff of the substantive and procedural due process ***right to be free from unreasonable search and seizures*** secured by Article I, Sections 1, 5, 8, 11 and 12 of the New York State Constitution;

63. As a result of the aforescribed actions, including the use of excessive physical force upon the plaintiff, the defendants deprived plaintiff of his ***right to liberty*** without due process of law secured by Article I Sections 1, 8, 11 and 12

of the New York State Constitution;

64. The aforescribed acts of these defendants were intentional, willful, malicious, and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

65. The afore-described acts of defendants were performed under color of state law;

66. The aforementioned use of force and infliction of emotional harm caused immediate injury in the form of physical and emotional pain, suffering, shock, fright, humiliation, embarrassment, disgrace, and deprivation of plaintiff's constitutional rights;

67. As a result of the foregoing, plaintiff has suffered damages;

**THIRD CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCHES AND SEIZURES UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO
THE UNITED STATES CONSTITUTION PREDICATED
UPON FALSE ARREST AND IMPRISONMENT**

68. Plaintiff repeats, reiterates and religious each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

69. As a result of the afore described actions, including the arrest and imprisonment of plaintiff without probable cause, the defendants individually deprived plaintiff, of his

substantive and procedural due process **rights, privileges and immunities** secured by the Constitution and laws of the United States and the Fourteenth Amendment;

70. As a result of the afore described actions, these defendants individually deprived plaintiff of his substantive and procedural due process **rights to be free from unreasonable search and seizures** secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

71. As a result of the aforescribed actions, these defendants individually deprived plaintiff his **right to liberty** without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

72. The afore described constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

73. The afore described acts of these defendants were intentional, willful, malicious, and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

74. The afore-described acts of defendants were performed under color of state law;

75. The aforementioned acts have caused immediate injury in the form of physical and emotional pain, suffering, shock,

fright, humiliation, embarrassment, disgrace, and deprivation of plaintiff's constitutional rights;

76. As a result of the foregoing, plaintiff has suffered damages;

**FOURTH CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S SUBSTANTIVE AND PROCEDURAL DUE
PROCESS RIGHTS TO BE FREE FROM UNREASONABLE
SEARCHES AND SEIZURES, AS PROTECTED BY
ARTICLE I OF THE NEW YORK STATE CONSTITUTION
PREDICATED UPON THE ARREST AND IMPRISONMENT
OF PLAINTIFF WITHOUT PROBABLE CAUSE**

77. Plaintiff repeats, reiterates and religious each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

78. As a result of the afore described actions, including the arrest and imprisonment of plaintiff without probable cause, the defendants deprived plaintiff of the ***rights, privileges and immunities*** secured by Article I, Sections 1, 5, 8, 11 and 12 the New York State Constitution;

79. As a result of the afore described actions, the defendants deprived plaintiff of the substantive and procedural due process ***right to be free from unreasonable search and seizures*** secured by Article I, Sections 1, 5, 8, 11 and 12 of the New York State Constitution;

80. As a result of the afore described actions, the defendants deprived plaintiff of his ***right to liberty*** without due process of law secured by Article I Sections 1, 8, 11 and 12 of the New York State Constitution;

81. The afore described conduct by these defendants were instigated by these defendants for other than lawful reasons and without probable cause;

82. The afore described acts of these defendants was intentional, willful, malicious, and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

83. The afore-described acts of defendants were performed under color of state law;

84. The aforementioned acts have caused immediate injury in the form of physical and emotional pain, suffering, shock, fright, humiliation, embarrassment, disgrace, and deprivation of plaintiff's constitutional rights;

85. As a result of the foregoing, plaintiff has suffered damages;

**FIFTH CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCHES AND SEIZURES AND
UNJUST PROSECUTION UNDER THE FOURTH,
FIFTH AND FOURTEENTH AMENDMENTS TO THE
UNITED STATES CONSTITUTION PREDICATED
UPON THE MALICIOUS PROSECUTION OF
PLAINTIFF WITHOUT PROBABLE CAUSE**

86. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

87. As a result of the afore described actions, including the criminal prosecution of plaintiff without probable cause, the defendants, individually and collectively deprived plaintiff, of the **rights, privileges and immunities** secured by the Constitution and laws of the United States and the Fourteenth Amendment;

88. As a result of the aforescribed actions, these defendants individually and collectively deprived plaintiff of his substantive and procedural due process **right to be free from unreasonable search and seizures** secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

89. As a result of the aforescribed actions, these defendants, individually and collectively, deprived plaintiff of his **right to liberty** without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

90. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

91. The aforescribed acts of these individual defendants were intentional, willful, malicious, and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

92. The afore-described acts of defendants were performed under color of state law;

93. The aforementioned acts have caused immediate injury in the form of physical and emotional pain, suffering, shock, fright, humiliation, embarrassment, disgrace, and deprivation of plaintiff's constitutional rights;

94. As a result of the foregoing, plaintiff has suffered damages;

**SIXTH CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCHES AND SEIZURES AND
UNJUST PROSECUTION AS PROTECTED BY
ARTICLE 1 OF THE NEW YORK STATE
CONSTITUTION PREDICATED UPON THE
MALICIOUS PROSECUTION OF PLAINTIFF
WITHOUT PROBABLE CAUSE**

95. Plaintiff repeats, reiterates and religious each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

96. As a result of the afore described actions, including the arrest and imprisonment of plaintiff without probable cause, the defendants deprived plaintiff of the **rights, privileges and immunities** secured by Article I, Sections 1, 5, 8, 11 and 12 the New York State Constitution;

97. As a result of the afore described actions, the defendants deprived plaintiff of the substantive and procedural due process **right to be free from unreasonable search and seizures** secured by Article I, Sections 1, 5, 8, 11 and 12 of the New York State Constitution;

98. As a result of the afore described actions, the defendants deprived plaintiff of his **right to liberty** without due process of law secured by Article I Sections 1, 8, 11 and 12 of the New York State Constitution;

99. The afore described conduct by these defendants were instigated by these defendants for other than lawful reasons and without probable cause;

100. The afore described acts of these defendants was intentional, willful, malicious, and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

101. The afore-described acts of defendants were performed under color of state law;

102. The aforementioned acts have caused immediate injury in the form of physical and emotional pain, suffering, shock, fright, humiliation, embarrassment, disgrace, and deprivation of plaintiff's constitutional rights;

103. As a result of the foregoing, plaintiff has suffered damages;

SEVENTH CAUSE OF ACTION FOR ASSAULT

104. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

105. As a result of the foregoing, defendants, individually and/or vicariously, by and through their agents, servants, and employees, placed plaintiff in apprehension of imminent harmful and offensive contact, thereby committing an assault upon him;

106. As a result of the foregoing, plaintiff has suffered damages;

EIGHTH CAUSE OF ACTION FOR BATTERY

107. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

108. As a result of the foregoing, plaintiff was without just cause or provocation, maliciously, and intentionally

battered and physically abused causing serious physical and emotional harm to plaintiff;

109. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally battered and physically abused plaintiff causing significant injury to plaintiff;

110. That the occurrence and injuries sustained by plaintiff, were caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually and/or vicariously by and through their, agents, servants and/or employees, without any provocation on the part of the plaintiff, contributing thereto;

111. As a result of the foregoing, plaintiff has suffered damages;

NINTH CAUSE OF ACTION FOR IMPROPER USE OF EXCESSIVE FORCE

112. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

113. As a result of the foregoing, plaintiff was without just cause or provocation, maliciously, and intentionally

battered and physically abused by virtue of the use of excessive force employed by defendants which included dragging plaintiff off his bed, throwing him to the ground, beating him physically with repeated punches and physically stomping him causing plaintiff to bleed profusely suffer a broken nose and cause serious physical and emotional harm to plaintiff;

114. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally used excessive force upon plaintiff causing significant injury to plaintiff;

115. That the occurrence and injuries sustained by plaintiff, were caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually and/or vicariously by and through their, agents, servants and/or employees, without any provocation on the part of the plaintiff, contributing thereto;

116. As a result of the foregoing, plaintiff has suffered damages;

**TENTH CAUSE OF ACTION FOR NEGLIGENT AND
INTENTIONAL INFLICTION OF EMOTIONAL HARM**

117. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the

same force and effect as if set forth more fully herein;

118. As result of the foregoing, defendants, individually and or vicariously, by and through their agents, servants and/or employees, intentionally, wantonly, recklessly, carelessly and/or negligently engaged in extreme and outrageous conduct measured by the reasonable bounds of decency tolerated by decent society thereby inflicting mental and emotional distress upon plaintiff;

119. As a result of the foregoing, plaintiff has suffered damages;

**ELEVENTH CAUSE OF ACTION FOR NEGLIGENT
SUPERVISION AND RETENTION**

120. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

121. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by their agents, servants and/or employees carelessly, negligently, and recklessly hired applicants for the position of police officers;

122. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by their agents, servants and/or employees carelessly, negligently, and recklessly trained applicants for the position of police officers;

123. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently, and recklessly supervised, controlled, managed, maintained, and inspected the activities of its police officers;

124. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees caused, permitted, and allowed its police officers to act in an illegal, unprofessional, negligent and/or deliberate manner in performing their official duties and/or responsibilities;

125. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently, and recklessly retained in its employ, police officers clearly unfit for the position who acted in an illegal, unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities prior to the date of the incident complained of herein;

126. That at the time and place aforesaid, the defendant CITY OF NEW YORK, by its agents, servants and/or employees, without just cause or provocation, maliciously, recklessly,

and/or intentionally assaulted, battered, physically abused, attacked, threatened, and intimidated plaintiff causing serious personal injury to plaintiff;

127. That the occurrence and injuries sustained by plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of the defendant, County of Suffolk, their agents, servants and/or employees as set forth above, without any provocation on the part of the plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected and retained its police officers and police department;

128. As a result of the foregoing, plaintiff has suffered damages;

TWELFTH CAUSE OF ACTION FOR PUNITIVE DAMAGES

129. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

130. That the aforesaid occurrence and resulting injuries to plaintiff were due to the willful, wanton, reckless and/or malicious conduct of the defendants, individually, jointly and/or vicariously by and through their agents, servants and/or

employees;

131. That the aforesaid occurrence and resulting injuries to plaintiff were due to the conduct of defendants, acting individually, jointly and/or vicariously by and through their agents, servants and/or employees which reflect utter indifference to the safety and well-being of others and specifically the safety and well-being of plaintiff;

132. That the aforesaid occurrence and resulting injuries to plaintiff were due to the conduct of defendants, individually, jointly and/or vicariously by and through their agents, servants and/or employees which reflect conscious disregard for the safety and well-being of others and specifically the safety and well-being of plaintiff;

133. That the conduct of defendants acting individually, jointly and/or vicariously by and through their agents, servants and/or employees exhibited a reckless disregard for human life and the safety and well-being of others and more particularly, for the life, safety, and well-being of plaintiff;

134. That the conduct of defendants, acting individually, jointly and/or vicariously by and through their agents, servants and/or employees exhibited such a wanton dishonesty as to imply a criminal indifference to the defendants' civil obligations as

public servants;

135. As a result of the acts stated above, plaintiff has suffered serious physical and emotional harm in the form of personal physical injuries, great stress and anxiety, a deprivation of liberty without probable cause, denial of due process, mental distress, and plaintiff will continue to suffer same in the future;

136. As a result of the foregoing, plaintiff has been damaged;

137. As a result of the foregoing, defendants, including defendant, POLICE OFFICER JESSE MCKAY, POLICE OFFICER BRYAN LEIBOLD, and the John Doe Officers, should be made to pay punitive damages to punish them for their wanton, reckless and malicious acts and thereby discourage these defendants and others from acting in a similar fashion in the future;

REQUEST FOR RELIEF

WHEREFORE, Plaintiff, MIGUEL CORDOVA PORTILLA, respectfully requests that judgment be entered as follows:

(A) Declaratory relief as follows:

1. As to the first cause of action, a declaration that plaintiff's substantive and procedural due process rights, privileges and immunities, liberty interests and right to be free from unreasonable searches and seizures protected under the United States Constitution and

amendments, were violated predicated upon the defendants' use of excessive force;

2. As to the second cause of action, a declaration that plaintiff's substantive and procedural due process rights, privileges and immunities, liberty interests and right to be free from unreasonable searches and seizures protected under the New York State Constitution, were violated predicated upon the use of excessive force;
3. As to the third cause of action, a declaration that plaintiff's substantive and procedural due process rights, privileges and immunities, liberty interests and right to be free from unreasonable searches and seizures protected under the United States Constitution and amendments, were violated predicated upon false arrest and imprisonment
4. As to the fourth cause of action, a declaration that plaintiff's substantive and procedural due process rights, privileges and immunities, liberty interests and right to be free from unreasonable searches and seizures protected under the New York State Constitution, were violated predicated upon false arrest and imprisonment
5. As to the fifth cause of action, a declaration that plaintiff's substantive and procedural due process rights, privileges and immunities, liberty interests and right to be free from unreasonable searches and seizures and unjust prosecution protected under the United States Constitution and amendments, were violated predicated upon malicious prosecution

As to the sixth cause of action, a declaration that plaintiff's substantive and procedural due process rights, privileges and immunities, liberty interests and right to be free from unreasonable searches and seizures protected

under the New York State Constitution, were
violated predicated upon malicious prosecution

(B) As to the first through eleventh causes of action,
compensatory damages in an amount that exceeds the
jurisdictional limits of all lower Courts that would
otherwise have jurisdiction;

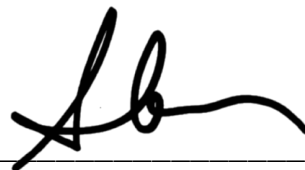
(C) As to the first through twelfth causes of action,
punitive damages in an amount that exceeds the
jurisdictional limits of all lower Courts that would
otherwise have jurisdiction, by reason of the wanton,
willful and malicious character of the conduct complained
of herein;

(D) As to the first through twelfth causes of action, an
award to plaintiff of the costs and disbursements herein;

(E) As to the first through sixth causes of action, an
award of attorney's fees as provided under 42 U.S.C. § 1988;
and

(F) Such other and further relief as this Court may deem
just, proper, and equitable

Dated: Mineola, New York
June 6 2024



Steve Marchelos, Esq.
MARCHELOS LAW P.C.
Attorneys for Plaintiff
MIGUEL CORDOVA PORTILLA
87 Mineola Boulevard
Mineola, New York 11501
(516) 248-0202
Steve@Marcheloslaw.com



ATTORNEY VERIFICATION

Steve J Marchelos, an attorney duly admitted to practice law in the Courts of the State of New York affirms the following to be true under the penalties of perjury pursuant to CPLR 2106.

That affirmant is the attorney for the plaintiff in the action within; that affirmant has read the foregoing **COMPLAINT** and knows the contents thereof; that the contents are true to affirmant's own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes them to be true; that the reason this verification is not made by plaintiff and is made by affirmant is that plaintiff is not presently in the county where the attorneys for the plaintiff have their office.

Affirmant further says that the source of deponent's information and the grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are from conversations with said plaintiff and investigations made by affirmant's office on behalf of said plaintiff.

Dated: Mineola, New York
June 6, 2024



Steve J Marchelos

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

MIGUEL CORDOVA PORTILLA,
Plaintiff,

- against -

POLICE OFFICER JESSE MCKAY, Tax Registry number 953087, POLICE
OFFICER BRYAN LEIBOLD, Tax Registry number 955051, CITY OF NEW
YORK, "JOHN DOE" 1-10, names unknown but believed to be New York
City Police officers involved in arrest and assault of
plaintiff,
Defendants.

SUMMONS AND VERIFIED COMPLAINT

MARCHELOS LAW P.C.

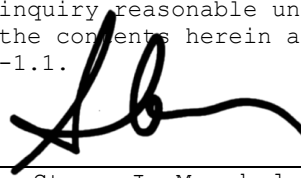
ATTORNEYS FOR PLAINTIFF(S)
87 MINEOLA BOULEVARD
MINEOLA, NEW YORK 11501
(516) 248-0202

Attorney Certification Pursuant to 22 NYCRR Section 130-1.1.A

The undersigned, an attorney duly admitted to practice law in the Courts of the
State of New York, respectfully affirms the truth of the following statement under the
penalty of perjury pursuant to CPLR §2106

The undersigned attorney hereby certifies that to the best of his/her
knowledge, information and belief, formed after an inquiry reasonable under the
circumstances, the presentation of the paper(s) or the contents herein are not
frivolous as defined in Subsection C of Section 130-1.1.

Dated: June 6 2024



Steve J. Marchelos